



RFP 2026-0400-26

Professional Development, Assessment, Consultant, Training, Services & Materials Services Supplier Response

Event Information

Number: RFP 2026-0400-26
Title: Professional Development, Assessment, Consultant, Training, Services & Materials
Type: Request For Proposal
Issue Date: 05/21/2026
Deadline: 06/04/2026 2:00 PM (CT)
Notes: Proposals must be submitted in sufficient time to be received and time stamped at the business office at the above location, on or before the published bid date and time shown on this RFP. LWISD will not be responsible for delayed mail, courier, or hand delivered responses. It is the vendors responsibility to verify the delivery of proposals. Proposals received after the published time and date will not be considered for the first awarded date, but for subsequent award within the noted time period. Bids/Proposals will be opened as received. Emailed bid responses will not be accepted

All mailed, courier or hand delivered proposals must be in an envelope and clearly marked on the outside with the company's name and addressed to:
Lake Worth Independent School District
Attn: Purchasing Department
6805 Telephone Road
Lake Worth, TX 76135
RFP#2026-0400-26 - Professional Development, Assessment, Consultant, Training, Services, Products and Materials

Notes: This is a MULTI-AWARD BID FOR Professional Development, Assessment, Consultant, Training, Services, Products and Materials.

Contract Term: July. 1, 2026 – June 30, 2031 (Additional vendors will be awarded during this time frame as determined by the district, all awards to be conterminous.)

If your company has been awarded a contract on a Purchasing Cooperative, you do NOT need to respond to this RFP. Please contact the Purchasing Department at bids@lwisd.org to discuss being an approved vendor with Lake Worth ISD.

BACKGROUND

Lake Worth Independent School District is a public-school district based in Lake Worth, Texas (USA). It encompasses approximately 12 square miles. Lake Worth ISD is a 4A public school district. The district serves grades K-12 with approximately 3,200 students attending five campuses. In addition to Lake Worth, the district serves small portions of Fort Worth and Sansom Park.

BUDGET AND TERM

Lake Worth ISD does not guarantee the volume (quantity or dollar value) to be purchased annually. The actual dollar amount to be purchased from this RFP depends on the actual needs of the District. (TAC 109.41) Once approved by the Lake Worth ISD Board of Managers, this qualification will be in effect for the identified term.

This RFP is issued in accordance with Title 2 of the Code of Federal Regulations (2 CFR) Part 200 requirements to purchase goods and/or services by Lake Worth ISD using federal dollars. LWISD may purchase goods and/or services from vendors qualified through this RFP with local, state, federal, and grant funds.

This RFP is a competitive solicitation (TEC 44.031). All procurement activities shall be conducted in a manner that provides maximum full and open competition per federal and state laws and local policies and procedures.

By submitting a response to this bid, you agree to provide services on an as needed basis to Lake Worth ISD. Lake Worth ISD does not guarantee the volume (quantity or dollar value) to be purchased annually. The actual dollar amount to be purchased from this RFP depends on District needs. (TAC 109.41)

This Request for Proposal is not a contract. Purchases will be made by approved purchase order and only a valid purchase order and the Lake Worth ISD Standard Attributes, Certifications, and Terms & Conditions will serve as the entirety of the contract. This document is an attachment to this solicitation and must be completed in its entirety. It must be signed and attached to your response.

*******NO PRODUCTS OR SERVICES SHOULD BE PROVIDED BEFORE THE
VENDOR RECEIVES A PURCHASE ORDER*******

SCOPE

Lake Worth Independent School District (LWISD) is requesting proposals from qualified firms and/or professionals interested in contracting with the district to provide Professional Development, Assessment, Consultant, Services, Products and Materials for various areas. These services and materials shall be procured on an "as needed" basis with LWISD making the sole determination of need. The services requested should include a wide spectrum of consultation, professional staff development, program improvement, campus level training & events, and other direct type services relating to Pre K -12 environments and support. This proposal is to begin from the date of award which is tentatively scheduled for July 1, 2026. NOTE: Proposals will be opened as submitted.

***Lake Worth ISD Purchasing Department, at its sole discretion, is authorized to determine if a vendor is responsive and/or within the scope of this solicitation.

EVALUATION PROCEDURE & CRITERIA

Bids will be opened and tabulated as they are received on normal working days during the solicitation offering period. Qualifications and responses will be reviewed according to criteria established by TEC 44.031(b).

In evaluating proposal responses, the following considerations will be taken into account for qualification recommendations:

- (1) The purchase price; market price, hourly rate, emergency rates; (30 points)
- (2) The reputation of the vendor and of the vendor's goods or services; services and references of like sized school district; (15 points)
- (3) The quality of the vendor's goods or services; (15 points)
- (4) The extent to which the goods or services meet the district's needs; (20 points)
- (5) The vendors' past relationship with the district; (5 points)
- (6) The impact on the ability of the districts to comply with laws and rules relating to historically underutilized businesses; (0 points)
- (7) The total long-term cost to the district to acquire the vendor's goods or services; (10 points)
- (8) For a contract for goods and services, materials, whether the vendor or the vendor's ultimate parent company or majority owner; (A) Has its principal place of business in the State of Texas; or (B) Employs at least 500 persons in the State of Texas; (0 points)
- (9) Any other relevant factor specifically listed in the request for bids or proposals; (5 points)

PROPOSAL PROCESS

1. **GENERAL INFORMATION:** The following instructions by the District are intended to afford proposers with an equal opportunity to participate in the proposal process and to provide a predetermined set of criteria representing the District's business and service requirements. This proposal is governed by the Texas Education Code (TEC), other applicable Texas state statutes, federal statutes and all local LWISD Board of Education (Board) policies.
2. **QUESTIONS CONCERNING THE RFP:** All questions regarding this solicitation must be submitted through bids@lwisd.org. Questions will not be accepted or answered via telephone.
3. **PROPOSAL SUBMISSION:** Lake Worth ISD requires that bidders submit their response either by courier or hand delivered in sealed envelope including company name and RFP number to:
Lake Worth ISD
Attn: Purchasing Department
6805 Telephone Rd.
Lake Worth, TX 76135

Please contact Heather West by email at bids@lwisd.org if you require assistance with the submittal portion of this process. Your cooperation is appreciated.

4. INTERVIEWS: At the District's discretion, LWISD may invite one or more Proposers to interview based on a pre-defined agenda and timeline. Said Proposer(s) will be notified by e-mail if the District determines that such demonstrations and interviews are needed. Proposer(s) shall demonstrate their competence, qualifications and/or ability to satisfy the District's RFP requirements. All expenses associated with the interview will be at the Proposers expense.

5. MODIFICATION OR WITHDRAWAL OF PROPOSALS: Proposals may be modified or withdrawn at any time before the exact hour and date specified as the deadline for receipt of proposals. The Proposer must send a written request to withdraw a Proposal after the response deadline to the Chief Financial Officer.

6. LATE PROPOSALS: Responses submitted after the due date and time noted in this RFP shall not be considered.

7. RESPONSIVE PROPOSAL: To be deemed responsive and qualify for evaluation, a Proposal must be timely submitted and must materially satisfy all mandatory requirements identified in this RFP.

8. RETENTION OF PROPOSAL DOCUMENTATION: All Proposal materials and supporting documentation submitted in response to this RFP becomes the permanent property of LWISD and will not be returned to Proposer.

9. FINANCIAL RESPONSIBILITY: Proposer shall pay all costs related to the preparation and submission of its Proposal.

10. RESERVATION OF RIGHTS: LWISD reserves the right to:

- A. Cancel this RFP in whole or in part.
- B. Accept, reject, or negotiate modifications in any terms of Proposal or any parts thereof.
- C. Reject and/or disqualify any or all Proposals received, award contracts for individual products or services as may appear advantageous and negotiate separately in any manner necessary to serve LWISD's best interests.
- D. Not award this proposal.
- E. Waive any formalities, technicalities, or other defects if deemed in the best interest of LWISD; request clarification and/or correction for the purpose of eliminating minor errors, clerical errors, and/or non-substantive irregularities.
- F. Be the sole judge of quality, make all decisions regarding this RFP, including, without limitation, the right to decide whether a Proposal substantially complies with the requirements of this RFP.

11. LIMITED CONTACT POLICY: Once this RFP is published, Lake Worth ISD staff and LWISD representatives will maintain limited contact with potential Vendors. Limited contact is a prohibition on any communication regarding this RFP or other competitive solicitations between any person who seeks an award under this RFP, including a potential vendor or vendor's representative; and:

A. Any Lake Worth ISD Board member, Superintendent, senior staff member, principal, department head, director, manager, other employee, or consultant who has influence in the evaluation or selection process.

B. Furthermore, campaign contributions, gifts, donations, and any other items of value are prohibited between the parties defined above for any known contract under consideration during the restricted or limited contact period.

C. Limited contact shall not apply to communication with LWISD's Purchasing staff. Such communications shall be limited to the purpose of obtaining clarification or information concerning the RFP. All communication with Purchasing staff must be in writing. The potential vendor or vendor's representative shall send all written communication directly to the designated procurement staff. The limited contact period shall begin upon the issuance of this RFP, bid, or other competitive solicitation and officially end upon execution of an award by the Board of Managers and/or the execution of a negotiated contract, whichever represents the final act in the procurement process.

D. Regardless of the above time period, it is not acceptable for a potential vendor to participate in determining the scope of work, strategic direction, technical specifications, or evaluation criteria of such projects. Nothing contained in this policy shall prohibit any potential vendor or vendor's representative from:

- 1) Making public representations at scheduled pre-bid conferences or scheduled selection and negotiation committee meetings.
- 2) Engaging in contract negotiations during any scheduled meeting.
- 3) Making a public presentation to the Lake Worth ISD Board during any duly noticed public meeting.
- 4) Conducting business on contracts previously executed and currently in force.
- 5) Nothing in this policy shall prohibit the procurement staff from initiating a contact with a potential vendor or vendor's representative and subsequent communication for the purpose of obtaining clarifying information regarding a response to an RFP, bid, or competitive solicitation. Such contact shall be in writing and shall be provided to the members of the applicable procurement staff, including any response thereto.

Contact Information

Contact: Heather West

Address: LWISD Purchasing
6805 Telephone Rd
Lake Worth, TX 76135

Vendor Name:

Address:

Phone:

By submitting your response, you certify that you are authorized to represent and bind your company.

Signature_____

Email_____

Requested Documentation

Standard Attributes Certifications and Terms Conditions

This agreement must be completed in its entirety and signed to be considered for qualification.

Vendor Application Packet

This document must be completed in its entirety, signed and dated.

Additional documentation needed. Hyperlink(s) below to open document(s). Please complete and printout necessary forms to be submitted with RFP : Sample Invoice; [Form W9](#); [1295 Filing Info](#);

[CIQ Form](#) (if applicable); [Lobbying](#) (Difficulties opening, please contact bids@lwisd.org)

Insurance Coverage

Provide your company insurance coverage. 26-27 Renewal Certificates

Other Relevant Information

Any other relevant information regarding your company or response.

Bid Attributes

1 REFERENCES

Below please indicate three (3) business references that have contracted with your company to provide like products and/or services. Include the company name, address, phone number, contact person, and email address. Preferable references are school districts in the Dallas-Fort Worth area who have used your services within the last three years. Additional references may be required.
DO NOT INCLUDE LWISD OR LWISD EMPLOYEES AS A REFERENCE.

***Please Note: Failure to supply complete reference information may be grounds for proposal disqualification

2 REFERENCE 1 SCHOOL DISTRICT/COMPANY NAME

Please provide the school district or company name.

3 REFERENCE 1 POST OFFICE/STREET ADDRESS

Please provide the Post Office/Street address.

4 REFERENCE 1 CITY

Please provide the City.

5	REFERENCE 1 STATE Please provide the State.
6	REFERENCE 1 ZIP CODE Please provide the zip code.
7	REFERENCE 1 PHONE NUMBER Please provide phone number
8	REFERENCE 1 EMAIL ADDRESS Please provide the email address.
9	REFERENCE 2 SCHOOL DISTRICT/COMPANY NAME Please provide the school district or company name.
10	REFERENCE 2 POST OFFICE/STREET ADDRESS Please provide the Post Office/Street address.
11	REFERENCE 2 CITY Please provide the City.
12	REFERENCE 2 STATE Please provide the State.
13	REFERENCE 2 ZIP CODE Please provide the zip code.
14	REFERENCE 2 PHONE NUMBER Please provide phone number
15	REFERENCE 2 EMAIL ADDRESS Please provide the email address.
16	REFERENCE 3 SCHOOL DISTRICT/COMPANY NAME Please provide the school district or company name.

1 7	REFERENCE 3 POST OFFICE/STREET ADDRESS Please provide the Post Office/Street address.
1 8	REFERENCE 3 CITY Please provide the City.
1 9	REFERENCE 3 STATE Please provide the State.
2 0	REFERENCE 3 ZIP CODE Please provide the zip code.
2 1	REFERENCE 3 PHONE NUMBER Please provide phone number
2 2	REFERENCE 3 EMAIL ADDRESS Please provide the email address.
2 3	ORGANIZATIONAL STRUCTURE Please provide the organizational structure that your company will set in place for the duration of the contract.
2 4	EMERGENCY CONTACT / PROCEDURES Please provide the name(s), contact phone number(s) and address of person responsible for responding to emergency or after hours calls. Include any emergency or after hours contact procedures that you would like Lake Worth ISD to follow.
2 5	NUMBER OF EMPLOYEES Please annotate the number of employees that will be dedicated to this contract if awarded?
2 6	MAIN CONTACT/LOCAL REPRESENTATIVE NAME Please provide the Name of the Main Contact / Local Representative.
2 7	MAIN CONTACT/LOCAL REPRESENTATIVE TITLE Please provide the title of the main contact.

28 PRICING CHANGES

ALL AWARDED PRICING MUST REMAIN FIRM FOR THE AWARD TERM OF THIS CONTRACT. All requests for price changes thereafter shall be in written form with (120) one hundred twenty calendar days advance notice PRIOR TO issuance of RENEWAL, and shall include documents supporting price changes. Supporting documents include, but are not limited to manufacturer's direct cost, fuel charge rates, Railroad Commission rates, Federal/State minimum wage laws, Federal/State unemployment taxes, FICA etc.

Lake Worth ISD reserves the right to accept or reject any/all price changes as it deems to be in the best interest of the District.

Acknowledge you have read and agree _____

29 SAMPLE INVOICE

I will attach a company sample invoice in the response documents tab of this bid showing how Lake Worth ISD will be billed.

Acknowledge you have read and will attach _____

30 VENDOR INSURANCE REQUIREMENTS

I have read the attached insurance requirements and agree to comply if awarded.

The successful Contractor will be required to supply proof of insurance in accordance with the following schedule prior to the start of the project. The District reserves the right to require higher limits of coverage depending on the size, scope, and nature of a contract. The District also reserves the right to require proof of insurance compliance related to General Liability and Workers Compensation. The immunity of the owner shall not be a defense from the insurance carrier. ONLY the AWARDED vendor(s) will be required to supply an insurance certificate naming Lake Worth ISD as an additional insured.

Lake Worth ISD must be named as an additional insured.

Acknowledge you have read and agree _____

BID LINES

In addition to student instruction, LWISD also provides continuing education to approximately 500 employees, including teachers, administrators and instructional support and business staff at the school campuses and various school district departments. These areas should also be considered by the bidders for training and staff development consultant services and materials as well

1. Services: Services should include a wide spectrum of consultation, professional staff development, program improvement, and other direct type services relating to Pre K-12 environments and support.
 - a.) Professional Development Consulting: Transference of specific knowledge from a professional with wide knowledge of a specific subject. These services may include providing advice to teachers, staff, students and parents about specific areas/subjects and may include activities to enhance professional career growth for teachers and other educational staff in specific areas.
 - b.) Program Improvement: The process of assisting administrators and other personnel in improving classes/programs in the District. Improvement targets may result from advice from professionals with expertise in the areas needing improvement.
 - c.) Motivational/Keynote Speakers: A person or group of people who makes speeches intended to motivate or inspire an audience. For a listing of departments and divisions within Lake Worth ISD, you may visit www.lwisd.org
2. Materials: Materials should include items that you or your firm may offer during the term of this proposal to include, but not be limited to, books, workbooks, training materials, etc.
3. Travel: LWISD preference is to have all travel and expenses included in the cost of the service.
4. The use of tobacco and alcohol is prohibited on LWISD property.
5. You may attach additional information to your proposal to provide details about your services and materials if needed.

PERCENT-OFF DISCOUNT FOR MATERIALS The district may require additional unspecified items that you/your firm may offer during the term of this contract (to include, but not be limited to. books, workbooks, training materials, etc.). Please indicate the percentage discount the district may apply to vendor's published catalog price or to manufacturer's list price:

% Discount (If discount is "0%", a 0 must be entered, A blank space will be considered non-responsive)

TRAVEL EXPENSES: (IT IS REQUESTED ALL TRAVEL AND ADDITIONAL EXPENSES BE INCLUDED IN YOUR SUBMITTED PRICE/QUOTE) Are travel costs included in the cost of services? _ Yes _ No

Pricing Sheet

Service Area	Cost per hour		Cost per ½ day (# hrs = 4)		Cost per full day (#hrs = 8)	
Motivational/ Keynote Speaker						
Leadership Development						
Assessment Services						
General Education						
Career & Technology						
Counseling/Guidance						
Fine Arts						
Language Arts 6-12						
Language Arts PreK-5						
Math 6-12						
Math PreK-5						
Science 6-12						
Science PreK-5						
Social Studies 6-12						
Social Studies PreK-5						
Special Education						

Lake Worth ISD

Lake Worth ISD RFP #2026-0400-26

Please note, YOU MUST SIGN PAGE 19 to certify you will comply, as applicable, with state and federal laws and local policies that Lake Worth ISD must follow when purchasing goods and/or services. If this document is not signed your organization will be disqualified from further consideration.

This document contains general information about serving as a Lake Worth ISD vendor and statements of applicable state and federal laws. All statements may not apply to your organization; however, entities must be aware of the information included here.

ITEM #1: VENDOR INFORMATION

1. **NAME AND EMAIL ADDRESS OF PREPARER.** By submitting this response, you agree you are an authorized agent of the firm you are representing and are permitted and authorized to perform such duties as assigned by a principle or act on behalf of the firm's principle(s). Please enter the full name of the person completing this proposal. Please print:

Name of firm: _____

Name of preparer: _____

Email of preparer: _____

2. **SECOND POINT OF CONTACT.** Provide the name and contact information for a second person Lake Worth ISD can contact about this response if the preparer is not available.

Second contact name: _____

Second contact email: _____

3. **TAX IDENTIFICATION.** Please provide your company's tax ID number as shown on your W-9. (EIN, TIN, or SSN)

4. **LOCATIONS.** If your firm has more than one location, please indicate all locations which will be covered under the terms and conditions of this bid and be bound by the discount offered, if any.

Is your principal place of business in Texas, including any Company whose ultimate parent company or majority owner has its principal place of business in this state? ([TGC 2252.001](#); [LGC 271.0275](#); [TEC44.031\(b-1\)](#))

YES _____ NO _____

STANDARD ATTRIBUTES, CERTIFICATIONS, AND TERMS & CONDITIONS

5. **MAIN CONTACT/LOCAL REPRESENTATIVE NAME.** Please provide the name of the main contact/local representative.

6. **MAIN CONTACT/LOCAL REPRESENTATIVE TITLE.** Please provide the title of the main contracted representative.

7. **MAIN CONTACT/LOCAL REPRESENTATIVE EMAIL.** Please provide the email address for the main contact/local representative.

8. **MAIN CONTACT/LOCAL REPRESENTATIVE PHONE.** Please provide the phone number for the main contact/local representative.

9. **PURCHASE ORDER ACCEPTANCE/EMAIL ADDRESS.**

10. **INVOICING CONTACT NAME AND TITLE.** Please provide the name and title of the invoicing contact person.

11. **INVOICING CONTACT EMAIL.** Please provide the Email Address of the invoicing contact person.

12. **INVOICING CONTACT PHONE.** Please provide the phone number of the invoicing contact person.

13. **COMPANY WEBSITE:** _____

14. **PAYMENT OPTIONS.** Vendor Direct Deposit (Payment by ACH) is Lake Worth ISD'S preferred method for delivery of payment for services rendered and/or goods purchased. The FDIC no longer requires a testing period for any existing banks. Each vendor would be required to provide an email address for the receipt notification of the direct deposit. The notification will have a voucher attached reflecting the amount of payment and date of deposit. This information will be kept confidential and only used for LWISD Vendor Payments. Please select your preferred method of payment. *** **Please note, if selecting Direct Deposit, a voided check or letter from your bank must be attached to our EFT form. (located last page of this packet)**

DIRECT DEPOSIT: _____ CHECK: _____

15. **REMIT INFORMATION, COMPANY NAME AND ADDRESS.** Please provide the company name and address to be used for payments.

STANDARD ATTRIBUTES, CERTIFICATIONS, AND TERMS & CONDITIONS

16. **REMIT INFORMATION PHONE.** Please provide a phone number to call regarding payments. (At the location where payments are sent).

17. **SHIPPING POLICY AND CHARGES.** What is your shipping procedure and policy? If you will not charge for shipping or if it is factored into your listed price for items, please indicate by entering "N/A".

18. **MINIMUM ORDER REQUIREMENTS.** If you have a minimum order requirement, please state the specifics, please indicate by entering "N/A".

19. **RETURNS.** Please provide policy and procedures for returns. If returns are not accepted, please state "NO RETURNS". If returns are not applicable to your business, indicate by entering N/A.

20. **EXCHANGES.** Please provide policy and procedures for exchanges. If exchanges are not accepted, please state "NO EXCHANGES". If exchanges are not applicable to your business, indicate by entering N/A.

21. **OTHER SERVICES OFFERED.** Please list any other services that your company offers.

22. **INTERLOCAL COOPERATIVE AGREEMENT.** Lake Worth ISD participates in governmental entities purchasing cooperatives in the State of Texas. Members of these purchasing cooperatives can leverage a Lake Worth ISD solicitation to make purchases that are compliant with Federal and State purchasing law. Should these governmental entities decide to leverage this procurement to make purchases the terms, conditions, specifications and pricing would apply. You must state that you do or do not want your company to be made available as a vendor via state and local government purchasing cooperatives below.

My organization Agrees _____ OPT Out _____ of any Texas or national purchasing cooperatives that LWISD is a member of. **(Please initial)** _____

STANDARD ATTRIBUTES, CERTIFICATIONS, AND TERMS & CONDITIONS

ITEM #2: LAKE WORTH ISD STANDARD TERMS & CONDITIONS

DO NOT provide goods and/or services to Lake Worth ISD if you do not have a Lake Worth ISD purchase order (PO). A PO and the Attributes, Certifications and Terms & Conditions included below constitute the entirety of a vendor's purchasing contract with Lake Worth ISD.

The terms below govern all procurements associated with the specific RFP to which your organization applied: No pre-established terms on an order acknowledgement, invoice, or other form shall have any force or effect. No modifications to Lake Worth ISD's terms & conditions is permitted unless first approved in writing from Lake Worth ISD.

- I. **Seller of Package Goods:** Seller will package goods in accordance with good commercial practice. Each shipping container shall be clearly and permanently packed as follows: (a) Seller's name and address; (b) Consignee's name, address and purchase order number (c) Container number and total number of containers, e.g. box 1 of 3 boxes; and (d) the number of the container bearing the packing slip. Seller shall bear cost of packaging unless otherwise provided. Goods shall be suitably packed to secure lowest transportation costs and to conform to requirements of common carriers and any applicable specifications. Buyer's count or weight shall be final and conclusive on shipments not accompanied by packing lists.
- II. **Shipment Under Reservation Prohibited:** Seller is not authorized to ship the goods under reservation and no tender of a bill of lading will operate as a tender of goods.
- III. **Title and Risk of Loss:** The title and risk of loss of the goods shall not pass to Buyer until Buyer receives and takes possession of the goods at the point or points of delivery.
- IV. **Delivery Terms and Transportation Charges:** F.O.B. Destination Freight Prepaid unless terms are specified otherwise in proposal Buyer agrees to reimburse Seller for transportation costs in the amount specified in Seller's proposal or actual costs, whichever is lower, if the quoted delivery terms do not include transportation costs, provided Buyer shall have the right to designate what method of transportation shall be used to ship the goods.
- V. **No Placement of Defective Tender:** Every tender or delivery of goods must fully comply with all provisions of this contract as to time of delivery, quality and the like. If a tender is made which does not fully conform, this shall constitute a breach and Seller shall not have the right to substitute a conforming tender provided, where the time for performance has not yet expired, the Seller may reasonably notify Buyer of his intention to cure and may then make a conforming tender within the contract time but not afterward.
- VI. **Place of Delivery:** The place of delivery shall be that set forth on the purchase order. Any change thereto shall be affected by modification as provided for in Clause 20, "Modifications," hereof. The terms of this agreement are "no arrival, no sale."
- VII. **Invoices & Payments:** Seller shall submit separate invoices, in duplicate, on each purchase order after each delivery. Invoices shall indicate the purchase order number, shall be itemized and transportation charges, if any, shall be listed separately. A copy of the bill of lading, and the freight weight bill when applicable, should be attached to the invoice.

Mail invoices to:
Lake Worth I.S.D.
Accounts Payable Department
6805 Telephone Rd.
Lake Worth, TX 76135

OR
Email to: accounts.payable@lwisd.org

Payment shall not be due until the above instruments are submitted after delivery. Suppliers should keep the Finance Department advised of any changes in your remittance addresses. Do not include Federal Excise, State, or City Sales Tax. School District shall furnish a tax exemption certificate, if required.

- VIII. Gratuities:** The Buyer may, by written notice to the Seller, cancel this contract without liability to Seller if it is determined by Buyer that gratuities, in the form of entertainment, gifts, or otherwise, were offered or given by the Seller, or any agent, or representative of the Seller, or any officer or employee of the School District with a view toward securing a contract or securing favorable treatment with respect to the performing of such a contract. In the event this contract is canceled by Buyer pursuant to this provision, Buyer shall be entitled, in addition to any other rights and remedies, to recover or withhold the amount of the cost incurred by the Seller in providing such gratuities.
- IX. Funding Out Clause:** Lake Worth Independent School District can only commit current revenue per Local Government Code 271.903. Should funding become unavailable for this product or service, any contract or agreement for further cost or obligation will automatically terminate.
- X. Warranty Price:** The price to be paid by the Buyer shall be that contained in Seller's proposal. In the event Seller breaches this warranty, Buyer may cancel this contract with liability to Seller for breach or Seller's actual expense.
The Seller warrants that no person or selling agency has been employed or retained to solicit or secure this contract upon an agreement or understanding for commission, percentage, brokerage, or contingent fee excepting bona fide employees of bona fide established commercial or selling agencies maintained by the Seller for the purpose of securing business. For breach or violation of this warranty, the Buyer shall have the right in addition to any other right or rights to cancel this contract without liability and to deduct from the contract price, or otherwise recover the full amount of such commission, percentage, brokerage or contingent fee.
- XI. Safety Warranty:** Goods and services provided shall comply with current state, federal and local environmental, health and safety codes and standards. Products deemed hazardous by the Consumer Product Safety Commission (CPSC), Environmental Protection Agency (EPA), and the Texas Department of Health (TDH) shall not be provided to the district unless otherwise pre-approved in writing by LWISD. Products forbidden include but are not limited to, such products as: asbestos building materials, lead based products and PCB containing equipment. All shipped goods are the responsibility of the seller while in their possession including all Department of Transportation (DOT) and other logistically regulated products. In the event the product does not conform to these above standards, the buyer may return the product for correction or replacement at the seller's expense. In the event the seller fails to make the appropriate correction within thirty (30) days, correction made by the buyer will be at the seller's expense.
- XII. Cancellation:** Buyer shall have the right to cancel for default all or any part of the undelivered portion of this order if Seller breaches any of the terms hereof including warranties of Seller or if the Seller becomes insolvent or commits acts of bankruptcy. Such right of cancellation is in

addition to and not in lieu of any other remedies which Buyer may have in law or equity.

- XIII. Termination:** The performance of work under this order may be terminated in whole or in part by the Buyer in accordance with this provision. Termination of work thereunder shall be affected by the delivery to the Seller of a "Notice of Termination" specifying the extent to which performance of work under the order is terminated and the date upon which such termination becomes effective. Such right of termination is in addition to and not in lieu of rights of Buyer set forth in Clause XIV, herein.
- XIV. Termination of Contract; Survival:** This Contract shall remain in effect until: (1) the Contract expires by its terms; (2) the Contract is terminated by a party with proper notice given pursuant to the terms of the Contract; or (3) the Contract is terminated by mutual consent of the District and Vendor. All supplemental Contracts or purchase orders for goods or services issued by Lake Worth ISD and accepted by the Vendor shall survive the expiration or termination of this Contract. During the term of any supplemental Contract entered into between a Vendor and Lake Worth ISD, all terms of this Contract shall continue to apply to the Supplemental Contract.
- XV. Software Maintenance:** Maintenance, support, hosting, and other services associated with software purchased pursuant to a Lake Worth ISD solicitation or one pursuant to a purchasing cooperative that Lake Worth ISD is a member of may be renewed on an annual basis indefinitely, at the District's sole discretion, subject to appropriation of sufficient funding and any necessary approvals by Lake Worth ISD's administration and Board of Managers.
- XVI. Force Majeure:** If by reason of Force Majeure, either party hereto shall be rendered unable wholly or in part to carry out its obligations under this Agreement then such party shall give notice and full particulars of Force Majeure in writing to the other party within a reasonable time after occurrence of the event or cause relied upon, and the obligation of the party giving such notice, so far as it is affected by such Force Majeure, shall be suspended during the continuance of the inability then claimed, except as hereinafter provided, but for no longer period, and such party shall endeavor to remove or overcome such inability with all reasonable dispatch.
The term Force Majeure as employed herein, shall mean acts of God, strikes, lockouts, or other industrial disturbances, act of public enemy, orders of any kind of government of the United States or the State of Texas or any civil or military authority: insurrections; riots; epidemics; landslides; land sinkage; lighting; earthquake; fires; hurricanes; storms; floods; washouts; droughts; arrests; restraint of government and people; civil disturbances; and explosions, breakage or accidents to machinery, pipelines or canals, or other causes not reasonably within the control of the party claiming such inability. It is understood and agreed that the settlement of strikes and lockouts shall be entirely within the discretion of the party having the difficulty, and that the above requirement that any Force Majeure shall be remedied with all reasonable dispatch shall not require the settlement of strikes and lockouts by acceding to the demands of the opposing party or parties when such settlement is unfavorable in the judgment of the party having the difficulty.
- XVII. Assignment Delegation:** No right or interest in this contract shall be assigned or delegation of any obligation made by Seller without the written permission of the Buyer. Any attempted assignment or delegation by Seller shall be wholly void and totally ineffective for all purposes unless made in conformity with this paragraph.
- XVIII. Waiver:** No claim or right arising out of a breach of this contract can be discharged in whole or in part by a waiver or renunciation of the claim or right unless the waiver or renunciation is supported by consideration and is in writing signed by the aggrieved.

- XIX. Modifications:** This contract can be modified or rescinded only by a writing signed by both parties to the contract or their duly authorized agents.
- XX. Interpretation Parole Evidence:** This writing is intended by Lake Worth ISD as a final expression of their agreement and is intended also as a complete and exclusive statement of the terms of their agreement. No course of prior dealings between Lake Worth ISD and no usage of the trade shall be relevant to supplement or explain any term used in this agreement. Acceptance or acquiescence in a course of performance rendered under this agreement shall not be relevant to determine the meaning of this agreement even though the accepting or acquiescing party has knowledge of the performance and opportunity for objection. Whenever a term defined by the Uniform Commercial Code is used in this agreement, the definition contained in the code is to control.
- XXI. Applicable Law:** This agreement shall be governed by the Uniform Commercial Code. Wherever the Term "Uniform Commercial Code" is used, it shall be construed as meaning the Uniform Commercial Code as adopted in the state of Texas effective and in force on the date of this agreement.
- XXII. Advertising:** Seller shall not advertise or publish, without Buyer's prior consent, the fact that Buyer has entered into this contract, except to the extent necessary to comply with proper requests for information from an authorized representative of the federal, state or local government.
- XXIII. Late Proposals:** Proposal or withdrawals thereof received after the time set for opening will not be considered.
- XXIV. Withdrawal of Sealed Proposals:** Proposals may be withdrawn prior to the time of proposal opening by written notice only.
- XXV. Right to Assurance:** Whenever one party to this contract in good faith has reason to question the other party's intent to perform, he/she may demand that the other party give written assurance of his/her business intent to perform. If a demand is made, and no assurance is given within five (5) days, the demanding party may treat this failure as an anticipatory repudiation of the contract.
- XXVI. Venue:** Both parties agree that venue for any litigation arising from this contract shall lie in Tarrant County, Texas.
- XXVII. Prohibition Against Personal Interest in Contracts:** Any board member which has any substantial interest, either direct or indirect, in any business entity seeking to contract with the district, shall, before any vote or decision or any matter involving the business entity, file an affidavit stating the nature and extent of interest and shall abstain from any participation in the matter. This is not required if the vote or decision will not have any special effect on the entity other than its effect on the public. However, if most of the governing body is also required to file, and do file similar affidavits, then the member is not required to abstain from further participation. Vernon's Texas Codes Annotated, Local Government code, Chapter 171.
- XXVIII. Conflict of Interest:** It is the vendor's responsibility to notify the school district if there is a conflict of interest. The following website will provide the appropriate form to be completed and submitted with the vendor's proposal: <http://www.ethics.state.tx.us/forms/CIQ.pdf>
- XXIX. Personnel Requirements:** All contractor personnel shall be clean in appearance and in uniform

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for easy identification if on Lake Worth ISD premises. The Contractor must provide Photo ID cards and name tags for each employee working on LWISD's properties. These ID badges must always be worn and visible. See Job Site Code of Conduct document.

ITEM #3: GENERAL PURCHASING INFORMATION & STATE OF TEXAS CERTIFICATIONS

1. **STATE & FEDERAL LAWS AND LOCAL POLICIES AND PROCEDURES.** Respondents **MUST** familiarize themselves with applicable state and federal purchasing laws and local policies and procedures before contracting with Lake Worth ISD. All services furnished through a contract resulting from this solicitation shall comply with all applicable Federal, State and Local laws, codes, and regulations, and Lake Worth ISD Board of Managers Policies BBFA (LEGAL) and BBFA (LOCAL) regarding Board member conflicts of interest.
2. **CONFIDENTIALITY.** The vendor and LWISD agree to secure the confidentiality of all information and records in accordance with applicable federal and state laws, rules, and regulations. The parties understand that the Family Educational Rights and Privacy Act (FERPA), 20 U.S.C. § 1232g, governs the privacy and security of educational records and information and agrees to abide by FERPA rules and regulations, as applicable.
3. **SAFETY.** The safety of Lake Worth ISD students, staff, and facilities is of utmost importance to the District. Vendors must comply fully with all applicable federal, state, and local safety and health laws, ordinances, rules, and regulations when providing goods and/or services to Lake Worth ISD. When more than one safety regulation governs a situation, the most restrictive requirement applies.
4. **W-9.** To receive payment under this contract, the vendor (approved) shall have a current IRS Tax Identification Number and W-9 Form on file with Lake Worth ISD Purchasing Department. A signed, current and accurate W-9 form must be submitted to Lake Worth ISD. A W-9 three years old or more will not be accepted.
5. **CREDIT MEMOS.** Lake Worth ISD expects the Respondent's representative and/or customer service department to be responsible in securing credit memos, as may be needed, for any miscellaneous problems that may occur during the length of this contract such as overpriced items, shipping charges, etc.
6. **PACKAGING/CONDITION.** Unless otherwise indicated, products will be new, unused and in excellent condition and delivered in containers suitable for damage-free shipment and storage. Lake Worth ISD will not accept inferior goods (including factory seconds") and reserves the right to return such item(s) within thirty (30) days of receipt at vendor's expense. If your organization provides refurbished products, it must be clearly stated in your response to the Lake Worth ISD RFP.
7. **VENDOR FINANCIAL RISK ASSESSMENT.** For select purchases above the simplified acquisition threshold of \$50,000 Lake Worth ISD reserves the right to request financial statements or other documents to identify and evaluate a potential supplier's financial stability and ability to meet contractual obligations. Vendors should have adequate financial resources (or the ability to attain such resources) to comply with requirements stated in a LWISD solicitation. Lake Worth ISD defines a responsible vendor as a qualified and established firm regularly providing the products and/or services requested by a LWISD solicitation that has an adequate number of trained staff to fulfill purchases made through a purchase order within a specified time. Organizations having a history of inconsistent services and unreliability are not responsible vendors.

8. **WARRANTIES, LIMITATION OF WARRANTY, MANUFACTURER GURANTEES.** Warranties and/or maintenance agreements pertaining to goods and/or services purchased by Lake Worth ISD must be noted in an entity's response to an RFP. The Vendor shall provide all warranty and/or company guarantee documents to Lake Worth ISD upon delivering and/or installing equipment. Goods and services under warranty must be replaced or fully repaired to the satisfaction of Lake Worth ISD before any pending payment is made. The entity shall not limit, exclude, or disclaim the foregoing warranty or any warranty implied by law, and any attempt to do so shall be without force or effect. A manufacturer's written guarantee shall be provided to Lake Worth ISD and the District reserves the right to have an item replaced should the original item prove unreliable or defective as expressed or implied by verbal or written specification.
9. **PRODUCT RECALLS.** Vendors are required to have, and follow, written product recall procedures, which includes a primary and secondary point of contact. If a product recall is issued on products provided to Lake Worth ISD, the entity must immediately notify Lake Worth ISD's designated contact by e-mail or in writing and must include all pertinent information about the recall. Vendor may be responsible for costs associated with replacing recalled products, including replacement cost, shipping charges, etc.
10. **ENDORSEMENTS.** Selection as an FISO-qualified vendor must not be construed or deemed an endorsement of a specific company or product. It is the intention of the parties that Vendor is independent of Lake Worth ISD and is not an employee, agent, joint venture, or partner of the Lake Worth ISD, and nothing in this solicitation shall be interpreted or construed as creating or establishing the relationship of employer and employee, agent, joint venture, or partner between the Lake Worth ISD and the vendor or any vendor's agent. Vendor agrees that Lake Worth ISD has no responsibility for any conduct of the vendor's employees, agents, representatives, contractors, or subcontractors.
11. **CRIMINAL BACKGROUND CHECK.** If an employee of a contractor is covered under SB 9, the contractor must bear the burden of obtaining a national, fingerprint-based criminal history check. Under Section 22.0834 of the Education Code, the contractor is then required to certify to Lake Worth ISD that the criminal history check has been performed. The contractors, not Lake Worth ISD, are responsible for contacting DPS directly to set up an account for the purposes of obtaining criminal history record information. Under the statute SB 9, a contractor is required to conduct a criminal history review on an employee only when the following criteria have been met: *The Employer has contracted with Lake Worth ISD to provide services. *The employee will have continuing duties relating to the contract with Lake Worth ISD. *The employee will have contact with students. A contractor or sub-contractor may not work on Lake Worth ISD property or any location Lake Worth ISD deems a place where students are regularly present when *they have been convicted of a felony or misdemeanor involving moral turpitude, as defined by Texas law, *they have charges pending, they have been convicted, received probation or deferred adjudication of any of the following: 1. Any offense against a child, 2. Any sex offense, 3. Any felony offense involving controlled substances, 4. Any felony offense against property, 5. Any other offense Lake Worth ISD believes might compromise the safety of students, staff, or property. A Proposer's violation of this section shall constitute substantial failure. If the Proposer is the person, owner, or operator of the business entity, that individual may not self-certify regarding the criminal history record information and its review and must submit original evidence acceptable to Lake Worth ISD with this Agreement showing compliance. Possession of firearms, alcohol, and/or drugs, even in vehicles, is strictly prohibited on property owned or operated by Lake Worth ISD. The use of tobacco products is not allowed on Lake Worth ISD property. The respondent's signature below certifies that it will comply.

- 12. CERTIFICATE OF INTERESTED PARTIES.** In 2015, the Texas Legislature adopted House Bill 1295, which added section 2252.908 of the Government Code. The law states that a governmental entity or state agency may not enter into certain contracts with a business entity unless the business entity submits a disclosure of interested parties (Form 1295) to the governmental entity or state agency at the time the business entity submits the signed contract to the governmental entity or state agency. The Texas Ethics Commission has adopted rules requiring the business entity to file Form 1295 electronically with the Commission.

The law applies only to a contract between a government entity or state agency and a business entity at the time it is voted on by the governing body or at the time it binds the governmental entity or state agency, or whichever is earlier, including an amended, extended, or renewed contract, of a governmental entity or state agency that either:

- a. Requires an action or vote by the governing body of the entity or agency before the contract may be signed; or
- b. Has a value of at least \$1 million, or
- c. Is for services that would require a person to register as a lobbyist under Chapter 305 of the government Code. Gov't Code§ 2252.908; 1 T.A.C. §§ 46.1(b), 46.3(a).

The disclosure requirement applies to a contract entered on or after January 1, 2016. A contract does not require an action or vote by the governing body of a governmental entity or state agency if:

- a. The governing body has legal authority to delegate to its staff the authority to execute the contract.
- b. The governing body has delegated to its staff the authority to execute the contract; and
- c. The governing body does not participate in the selection of the business entity with which the contract is entered. 1 T.A.C. § 46.1(c).

The respondent's signature certifies that it will provide a Form 1295, if requested.

- 13. NON -COLLUSIVE BIDDING CERTIFICATE.** By submission of response, the respondent certifies that: a) This offer, bid, quote or proposal has been independently arrived at without collusion with any other competitor. b) This offer, bid, quote or proposal has not been knowingly disclosed and will not knowingly be disclosed, prior to signing a contract for this project, to any competitor c) No attempt has been or will be made to induce any other person, partnership or corporation to submit or not to submit an offer, bid, quote or proposal; d) The person signing any contract must certify that he has fully informed himself regarding the accuracy of the statements contained in this certification under the penalties being applicable to the entity, as well as to the person signing on its behalf. Any violation of this may result in a decision to no longer contract with a LWISD-approved vendor.

- 14. PROHIBITION AGAINST PERSONAL INTEREST IN CONTRACTS.** Any board member which has any substantial interest, either direct or indirect, in any business entity seeking to contract with Lake Worth ISD, shall, before any vote or decision or any matter involving the business entity, file an affidavit stating the nature and extent of interest and shall abstain from any participation in the matter. This is not required if the vote or decision will not have any special effect on the entity other than its effect on the public. However, if most of the governing body is also required to file, and do file similar affidavits, then the member is not required to abstain from further participation. Vernon's Texas Codes Annotated, Local Government code, Chapter 171. The respondent certifies by signing below that it will comply with this requirement.

- 15. PROHIBITION ON CONTRACTS WITH CERTAIN COMPANIES.** Sec. 2252.151. In this subchapter: "Company" has the meaning assigned by Section 806.001. (1) "Foreign terrorist organization" means an organization designated as a foreign terrorist organization by the United States Secretary of State as authorized by 8 U.S.C. Section 1189. (2) "Governmental contract" means a contract awarded by a governmental entity for general construction, an improvement, a service, or a public works project or for a purchase of supplies, materials, or equipment. The term includes a contract to obtain a professional or consulting service subject to Chapter 2245. (3) "Governmental entity" has the meaning to be assigned by Section 2252.001. Sec 2252.152. **CONTRACTS WITH COMPANIES ENGAGED IN BUSINESS WITH IRAN, SUDAN OR FOREIGN TERRORIST ORGANIZATION PROHIBITED.** A Governmental entity may not enter into a Governmental contract with a company that is identified on a list prepared and maintained under Section 806.051, 807.051, or 2252.153. Sec. 2252.153 **LISTED COMPANIES.** The comptroller shall prepare and maintain, and make available to each governmental entity, a list of companies known to have contracts with or provide supplies or services to a foreign terrorist organization. Subchapter F, Chapter 2252, Government Code, as added by this Act, applies to a contract or purchase for which a Governmental Entity first advertises or otherwise solicits bids, proposals, offers, or qualifications on or after the effective date of this Act. The respondent certifies by signing below that it is not an entity engaged in business with Iran, Sudan, or foreign terrorist organizations.
- 16. NOT BOYCOTT ISRAEL.** Under the provisions of Subtitle F, Title 10, Government Code Chapter 2271.002, Vendor confirms that my company: (1) Does not boycott Israel currently; and (2) Will not boycott Israel during the term of any contract with Lake Worth ISD. Pursuant to Section 2271.001, Texas Government Code: (1) "Boycott Israel" means refusing to deal with, terminating business activities with, or otherwise taking any action that is intended to penalize, inflict economic harm on, or limit commercial relations specifically with Israel, or with a person or entity doing business in Israel or in an Israeli-controlled territory, but does not include an action made for ordinary business purposes. (2) "Company" means a for-profit sole proprietorship, organization, association, corporation, partnership, joint venture, limited partnership, limited liability partnership, or limited liability company, including a wholly owned subsidiary, majority-owned subsidiary, parent company, or affiliate of those entities or business associations that exists to make a profit. The respondent's signature below certifies that it does not boycott Israel.
- 17. PROHIBITED TRANSACTIONS WITH PROVIDERS OR AFFILIATES.** Under the provisions of Subtitle F, Title 10, Government Code CHAPTER 2272. **PROHIBITED TRANSACTIONS** Sec.2272.001 relating to prohibiting certain transactions between a governmental entity and an abortion provider or affiliate of the provider. Company is not an abortion provider or affiliate of a provider. "Abortion provider" means: (1) a facility licensed under Chapter 245, Health and Safety Code; or (2) an ambulatory surgical center licensed under Chapter 243, Health and Safety Code, that is used to perform more than 50 abortions in any 12-month period. "Affiliate" means a person or entity who enters into with another person or entity a legal relationship created or governed by at least one written instrument, including a certificate of formation, a franchise agreement, standards of affiliation, bylaws, or a license, that demonstrates: (1) common ownership, management, or control between Lake Worth ISD to the relationship; (2) a franchise granted by the person or entity to the affiliate; or (3) the granting or extension of a license or other agreement authorizing the affiliate to use the other person's or entity's brand name, trademark, service mark, or other registered identification mark. By signing below, the respondent certifies that it is not an abortion provider or an affiliate.
- 18. FIREARM ENTITY/TRADE ASSOCIATION NONDISCRIMINATION.** If vendor is not a sole proprietorship, has ten (10) or more employees, and the value of vendor's bid or proposal has a value of \$100,000 or more, vendor certifies by submitting vendor's bid or proposal that it does not

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have a practice, policy, guidance, or directive that discriminates against a firearm entity or firearm trade association, as defined by Texas Government Code Ann. Chapter 2274, and will not during the term of any contract with the District, unless excepted from that law. The respondent certifies by signing below that it does not have a practice, policy, guidance, or directive that discriminates against a firearm entity or firearm trade association.

- 19. ENERGY COMPANY BOYCOTT.** As required by Texas Government Code Ann. Chapter 2274, if the vendor has ten (10) or more employees, is not a sole proprietorship, and if the value of the Vendor's bid or proposal has a value of \$100,000 or more, vendor certifies by signature below that it does not boycott energy companies and will not during the term of any contract with the District, unless excepted by that law.
- 20. HUMAN SEXUALITY INSTRUCTIONAL MATERIALS.** For any agreement entered into for the purchase of copyrighted materials used for human sexuality instruction, the respondent certifies to allow LWISD parent or guardian to purchase a copy of the materials from the publisher at a price that does not exceed the price per unit paid by the District by signature below.
- 21. INFRASTRUCTURE CONTRACTS WITH CITIZENS OF CHINA, IRAN, NORTH KOREA, RUSSIA OTHER DESIGNATED COUNTRIES.** Per SB 2116 of the Texas 87th(R) Legislative Session, Lake Worth ISD must not contract with countries for work related to critical infrastructure (including cybersecurity) that are owned by citizens of China, Iran, North Korea, Russia, or any other country designated by the Governor as a threat to critical infrastructure, or by companies owned by citizens headquartered in China, Iran, North Korea, Russia, or any other country designated by the governor as a threat to critical infrastructure. By signing below, the respondent certifies it is not owned by a citizen(s) of or is not headquartered in China, Iran, North Korea, Russia, or other country designated as a threat to infrastructure by the Texas Governor.
- 22. DRUG-FREE, ALCOHOL AND TOBACCO-FREE WORKPLACE.** Lake Worth ISD is committed to an alcohol-and drug-free environment. Use of tobacco, alcohol and illegal drugs in the workplace or at school-related or school-sanctioned activities on or off school property is not tolerated (41 U.S.C. 702). Compliance for Lake Worth ISD staff is mandatory and is a condition of employment. Employees who use tobacco or are under the influence of alcohol or illegal drugs during work hours are subject to disciplinary sanctions up to and including termination of employment. Lake Worth ISD vendors certify to adhere to District policies about drug-, alcohol- and tobacco-free schools and offices. Vendors should consult the Drug-Free Workplace Act (1988) and Texas Workforce Commission's Drug-Free Workplace Policy to determine if they must implement a Drug-Free Workplace program.
- 23. THE TEXAS PUBLIC INFORMATION ACT (PIA)** governs a person's right to request access to information of governmental bodies and outlines the rights, obligations, and procedures of both government entities, including ISDs, and information requesters. Individuals are entitled to complete information about the affairs of school districts and the official acts of public officials and employees. The PIA requires government entities to disclose requested information requested unless otherwise expressly provided by law. The PIA must be liberally construed in favor of granting information. (See [TGC 552.001\(a\), \(b\)](#)). Purchasing information is defined as public information subject to the PIA. Individuals requesting information under the PIA will have access to your application to this solicitation. To submit a request, go to the [Information Request - Lake Worth ISD](#) on the Lake Worth ISD website.
- 24. RECYCLING AND PURCHASE OF RECYCLED MATERIALS.** As required by [30 TAC 328.202](#), Lake Worth ISD has established a program for the separation and collection of all recycled materials generated by the entity's operations and provides staff procedures for collecting and storing

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recyclable materials, containers for recyclable materials and procedures for making contractual or other arrangements with buyers of recycled materials. LWISD is committed to a continuous improvement process for its recycling programs. The District has information and incentive programs to encourage maximum employee participation. Items purchased by Lake Worth ISD will be recycled to the extent possible.

- 25. TEXAS FAMILY CODE.** Pursuant to Texas Family Code, Section 231.006, a child support obliger who is more than thirty (30) days delinquent in paying child support or a business entity in which the child support obligor is a sole proprietor, partner, shareholder, or owner with an ownership interest of at least twenty-five percent (25%) is not eligible to receive payments from State funds under a contract to provide property, materials, or services until all arrearages have been paid; the obliger is in compliance with a written repayment agreement or court order as to the existing delinquency; or a court of continuing jurisdiction over the child support order has granted the obliger an exemption as part of a court-supervised effort to improve earnings and child support payments. If the entity proposing is an individual or the sole proprietor of the proposing business, is not ineligible under Section [231.006](#) of the Texas Family Code to receive the payments of State funds.

ITEM #4: REQUIRED QUALIFICATION PROVISIONS FOR NON-FEDERAL ENTITY CONTRACTS UNDER FEDERAL AWARDS 2 CFR PART 200 AND APPENDIX II

The following provisions are required and apply when federal funds are expended by Lake Worth Independent School District. In these instances, Lake Worth ISD is the sub grantee or subrecipient. In addition to other provisions required by the Federal Agency or Non-Federal entity, all contracts made by Lake Worth ISD under the Federal Award must contain provisions covering the following as applicable:

- 1. DEBARMENT AND SUSPENSION CERTIFICATION.** Debarment and Suspension (Executive Orders 12549 and 12689)-A contract award (see 2 CFR 180.220) must not be made to parties listed on the government-wide exclusions in the System for Award Management (SAM), in accordance with the OMB guidelines at 2 CFR 180 that implement Executive Orders 12549 (3 CFR part 1986 Comp., p. 189) and 12689 (3 CFR part 1989 Comp., p. 235). "Debarment and Suspension." SAM Exclusions contains the names of parties debarred, suspended, or otherwise excluded by agencies, as well as parties declared ineligible under statutory or regulatory authority other than Executive Order 12549. Pursuant to Federal Law, when federal funds are expended by LWISD, LWISD requires that the proposer certifies that during the term of an award by LWISD resulting from this procurement process the vendor will comply. The respondent's signature below certifies it is not suspended or debarred.
- 2. TERMINATION FOR CAUSE AND FOR CONVENIENCE BY THE GRANTEE OR SUBGRANTEE (ALL CONTRACTS IN EXCESS OF \$10,000).** All contracts in excess of \$10,000 must address the non-Federal entity including how it will be affected and the basis for settlement. Pursuant to Federal Rule above, when federal funds are expended by LWISD, LWISD reserves the right to terminate any agreement more than \$10,000 resulting from this procurement process for cause after giving the vendor an appropriate opportunity and up to 30 days, to cure the causal breach of terms and conditions. LWISD reserves the right to terminate any agreement more than \$10,000 resulting from this procurement process for convenience with 30 days' notice in writing to the awarded vendor. The vendor would be compensated for work performed and goods procured as of the termination date if for the convenience of the LWISD. Any award under this procurement process is not exclusive and the District reserves the right to purchase goods and services from other vendors when it is in the best interest of the District. By signing below, the respondent accepts this requirement.

3. **BYRD ANTI-LOBBYING AMENDMENT (31 U.S.C. 1352).** Contractors that apply or bid for an award exceeding \$100,000 must file the required certification. Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. 1352. Each tier must also disclose any lobbying with non-Federal funds that takes place in connection with obtaining any Federal award. Such disclosures are forwarded from tier to tier up to the non-Federal award. Pursuant to Federal Rule above, when federal funds are expended Lake Worth ISD, the vendor certifies that during the term and after the agreed term of qualification by Lake Worth ISD resulting from this procurement process, the vendor certifies that it is in compliance with all applicable provisions of the Byrd Anti-Lobbying Amendment (31 U.S.C. 1352). The undersigned further certifies that:
- A. No Federal appropriated funds have been paid or will be paid for on behalf of the undersigned, to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of congress, or an employee of a Member of Congress in connection with the awarding of a Federal contract, the making of a Federal grant, the making of a Federal loan, the entering into a cooperative agreement, and the extension, continuation, renewal, amendment, or modification of a Federal contract, grant, loan, or cooperative agreement.
 - B. If any funds other than Federal appropriated funds have been paid or will be paid to any person for influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of congress, or an employee of a Member of Congress in connection with this Federal grant or cooperative agreement, the undersigned shall complete and submit Standard Form-LLL, "Disclosure Form to Report Lobbying", in accordance with its instructions.
 - C. The undersigned shall require that the language of this certification be included in the award documents for all covered sub-awards exceeding \$100,000 in Federal funds at all appropriate tiers and that all sub-recipients shall certify and disclose accordingly.
4. **RECORD RETENTION REQUIREMENTS FOR CONTRACTS PAID FOR WITH FEDERAL FUNDS - 2 CFR § 200.333.** When federal funds are expended by Lake Worth ISD for any qualification resulting from this procurement process, the vendor certifies that it will comply with the record retention requirements detailed in 2 CFR § 200.333. By signing below, the vendor further certifies that vendor will retain all records as required by 2 CFR § 200.333 for a period of three years after grantees or sub grantees submit final expenditure reports or quarterly or annual financial reports, as applicable, and all other pending matters are closed. The respondent certifies by signing below that it will comply.
5. **CONFLICT OF INTEREST.** 2 CFR 200.318(c)(1) states that the District must maintain written standards of conduct covering conflict of interest and governing the actions of its employees engaged in the selection, award, and administration of contracts. No employee, officer, or agent may participate in the selection, award, or administration of a contract supported by a Federal award if he or she has a real or apparent conflict of interest. Such a conflict of interest would arise when the employee, officer, or agent, any member of his or her immediate family, his or her partner, or an organization which employs or is about to employ any of the parties indicated herein, has a financial or other interest in or a tangible personal benefit from the contract awarded to a specific

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supplier. The officers, employees, and agents of the District may neither solicit nor accept gratuities, favors, or anything of monetary value from suppliers or parties to subcontracts. However, the District may set standards for situations in which the financial interest is not substantial, or the gift is an unsolicited item of nominal value. The standards of conduct must provide for disciplinary actions to be applied for violations of such standards by officers, employees, or agents of the District. It is the responsibility of the supplier to identify and make the District aware of any potential conflicts of interest that exist between their company and the District. Failure to do so will cause the associated supplier response to be disqualified from further consideration, or if already awarded, the associated contract will be canceled based on cause. By signing below, the respondent certifies that it will comply.

6. **NON-COLLUSION STATEMENT.** The respondent certifies by signature below under penalty of perjury that its responses to this procurement solicitation are in all respects bona fide, fair, and made without collusion or fraud with any person, joint venture, partnership, corporation or other business or legal entity.
7. **DOMESTIC PREFERENCES.** 2 CFR 200.332 states that, as appropriate and to the extent consistent with law, the District should, to the greatest extent practicable under a Federal award, provide a preference for the purchase, acquisition, or use of goods, products, or materials produced in the United States (including but not limited to iron, aluminum, steel, cement, and other manufactured products). The requirements of this section must be included in all subawards including all contracts and purchase orders for work products under this award. When Federal funds are expended by Lake Worth ISD domestic preference for procurements requirements will apply. By signing below, the respondent certifies it will comply.
8. **AGRICULTURAL PRODUCTS.** Lake Worth ISD may apply preference to agricultural products produced, processed, or grown in Texas if the cost to the school district is equal and the quality is equal; if agriculture products produced, processed, or grown in Texas are not equal in cost and quality to other products, the District shall give preference to agriculture products produced, processed, or grown in other states of the United States over foreign products if the cost to the school district is equal and quality is equal; a school district that purchases vegetation for landscaping purposes, including plants, shall give preference to Texas vegetation if the cost to the school district is equal and the quality is not inferior. Preferences must be explicitly claimed by Vendor and may not be applicable in procurements and/or contracts involving federal funds unless the procurement and/or contract involves unprocessed locally grown or locally raised agricultural products for use by Lake Worth ISD in a School Nutrition Program. See 2 CFR § 200.319(b), and 7 CFR § 210 (National School Lunch Program), 215 (Special Milk Program for Children), 220 (School Breakfast Program), 225 (Summer Food Service Program), 226 (Child and Adult Care Food Program).
9. **PROHIBITION ON TELECOMMUNICATIONS AND VIDEO SERVICES OR EQUIPMENT, 2 C.F.R. §200.216.**
All recipients of federal funding are prohibited from procuring, obtaining, extending, or renewing a contract to procure or obtain any equipment, system, or service that uses prohibited telecommunications equipment services as a substantial or essential component of any system, unless an exception is made in the regulation. The prohibited equipment is any telecommunications equipment produced by Huawei Technologies Company or ZTE Corporation, or any subsidiary or affiliate of those entities OR video surveillance and telecommunications equipment produced by Hytera Communications Corporation, Hangzhou Hikvision Digital Technology Company, or Dahua Technology Company, or any subsidiary or affiliate of such entities. By signing below, my organization agrees to not procure, obtain, extend a contract, or renew a contract to procure or obtain any equipment, system, or service that uses prohibited telecommunications equipment

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services as a substantial or essential component of any system, unless an exception is made in the regulation. The respondent's signature below certifies it will comply with prohibitions on telecommunications/video services or equipment stated in this section.

- 10. CONTRACTS FOR MORE THAN THE SIMPLIFIED ACQUISITION THRESHOLD \$350,000.** Contracts for more than the simplified acquisition threshold currently set at \$350,000, which is the inflation adjusted amount determined by the Civilian Agency Acquisition Council and the Defense Acquisition Regulations Council (Councils) as authorized by 41 U.S.C. 1908, must address administrative, contractual, or legal remedies in instances where contractors violate or breach contract terms, and provide for such sanctions and penalties as appropriate. Pursuant to Federal Rule above, when federal funds are expended by LWISD, LWISD reserves all rights and privileges under the applicable laws and regulations with respect to this procurement in the event of a breach of agreement by either party. The respondent certifies below by signing that it will comply.
- 11. CLEAN AIR AND WATER ACT.** Clean Air Act (42 U.S.C. 7401-7671q.) and the Federal Water Pollution Control Act (33 U.S.C. 1251-1387), as amended -Contracts and sub-grants of amounts more than \$350,000 must contain a provision that requires the non-Federal award to agree to comply with all applicable standards, orders or regulations issued pursuant to the Clean Air Act (42 U.S.C. 7401- 7671q) and the Federal Water Pollution Control Act as amended (33 U.S.C. 1251-1387). Violations must be reported to the Federal awarding agency and the Regional Office of the Environmental Protection Agency (EPA). Pursuant to Federal Law, when federal funds are expended by LWISD, LWISD requires that the proposer certifies by signature below that during the term of an award by LWISD resulting for this procurement process, the vendor will comply.
- 12. BUY AMERICA PROVISIONS.** The respondent certifies below that it will comply with all applicable provisions of the Buy America Act. Purchases made in accordance with the [Buy America Act](#) must still follow the applicable procurement rules calling for free and open competition. The Buy American Act requires school food authorities to purchase, to the maximum extent possible, domestic commodities or products. For a product to meet the Buy American requirement, over 51% of the final processed product (by weight or volume) must consist of agricultural commodities that were grown domestically and processed domestically. Unprocessed foods must be 100% domestic.
- 13. HEALTH AND SAFETY CERTIFICATIONS, LICENSING, OR REGULATIONS.** Pursuant to Federal Rule (41 U.S.C. 1908) above, when federal funds are expended by LWISD, LWISD requires proposer to certify that during the term of an award by the LWISD resulting for this procurement process the vendor will follow mandatory standards and policies relating to observance of applicable local, state, or federal health and safety certifications, licensing, or regulations. By signing below, the respondent certifies that it will comply.
- 14. CIVIL RIGHTS/DISCRIMINATION.** The vendor will follow mandatory standards and policies relating to Title VI of the Education Amendments of 1972; Section 504 of the Rehabilitation Act of 1973; the Age Discrimination Act of 1975; Title 7 CFR Parts 15, 15a, and 15b; the Americans with Disabilities Act; and FNS instruction 113-1, Civil Rights Compliance and Enforcement - Nutrition Programs and Activities. Pursuant to Federal Law, when federal funds are expended by LWISD, LWISD requires that the proposer certifies during the term of an award by LWISD resulting for this procurement process the vendor will comply. If you do not agree, the District is prohibited from contracting with the proposer. The respondent certifies that it will comply by signing below.
- 15. PROTEST OF A SOLICITATION.** Any protest of this solicitation must be received in writing by the Buyer named as the contact on the first page of the solicitation at least three days before the solicitation closes.

- 16. DAVIS-BACON AND ANTI-KICKBACK ACT.** Davis-Bacon Act, as amended (40 U.S.C. 3141-3148). When required by Federal program legislation, all prime construction contracts more than \$2,000 awarded by non-Federal entities must include a provision for compliance with the Davis-Bacon Act (40 U.S.C. 3141-3144, and 3146-3148) as supplemented by Department of Labor regulations (29 CFR Part 5, "Labor Standards Provisions Applicable to Contracts Covering Federally Financed and Assisted Construction"). In accordance with the statute, contractors must be required to pay wages to laborers and mechanics at a rate not less than the prevailing wages specified in a wage determination made by the Secretary of Labor. In addition, contractors must be required to pay wages not less than once a week. The non-Federal entity must place a copy of the current prevailing wage determination issued by the Department of Labor in each solicitation. The decision to award a contract or subcontract must be conditioned upon the acceptance of the wage determination. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency. The contracts must also include a provision for compliance with the Copeland "Anti-Kickback" Act (40 U.S.C. 3145), as supplemented by the Department of Labor regulations (29 CFR Part 3, "Contractors and Subcontractors on Public Bonding or Public Work Financed in Whole or in Part by Loans or Grants from the United States"). The Act provides that each contractor or sub-recipient must be prohibited from inducing any person employed in the construction, completion, or repair of public work, to give up any part of the compensation to which he or she is otherwise entitled. The non-Federal entity must report all suspected or reported violations to the Federal awarding agency. Pursuant to Federal Law, when federal funds are expended by LWISD, LWISD requires that vendor certifies that during the term of an award by LWISD resulting for this procurement process the vendor will comply.
- 17. EQUAL EMPLOYMENT OPPORTUNITY.** Except as otherwise provided under 41 CFR Part 60, all contracts that meet the definition of "federally assisted construction contract" in 41 CFR Part 60-1.3 must include the equal opportunity clause provided under 41 CFR 60-1.4(b), in accordance with Executive Order 11246, "Equal Employment Opportunity" (30 FR 12319, 12935, 3 CFR Part, 1964-1965 Comp., p. 339), as amended by Executive Order 11375, "Amending Executive Order 11246 Relating to Equal Employment Opportunity," and implementing regulations at 41 CFR part 60, "Office of Federal Contract Compliance Programs, Equal Employment Opportunity, Department of Labor." Pursuant to Federal Law, when federal funds are expended by LWISD for federally assisted construction contracts, the equal opportunity clause is incorporated by reference.
- 18. CONTRACT WORK HOURS AND SAFETY STANDARDS ACT.** Contract Work Hours and Safety Standards Act (40 U.S.C. 3701-3708). Where applicable, all contracts awarded by the non-Federal entity in excess of \$100,000 that involve the employment of mechanics or laborers must include a provision for compliance with 40 U.S.C. 3702 and 3704, as supplemented by Department of Labor regulations (29 CFR Part 5). Under 40 U.S.C. 3702 of the Act, each contractor must be required to compute the wages of every mechanic and laborer based on a standard work week of 40 hours. Work more than the standard work week is permissible provided that the worker is compensated at a rate of not less than one and a half times the basic rate of pay for all hours worked in excess of 40 hours in the work week. The requirements of 40 U.S.C. 3704 are applicable to construction work and provide that no laborer or mechanic must be required to work in surroundings or under working conditions which are unsanitary, hazardous, or dangerous. These requirements do not apply to the purchases of supplies or materials or articles ordinarily available on the open market, or contracts for transportation or transmission of intelligence. Pursuant to Federal Law, when federal funds are expended by LWISD, LWISD requires that the proposer certifies that during the term of an award by

LWISD resulting for this procurement process the vendor will comply. The respondent's signature below certifies that it will comply.

- 19. SOLID WASTE DISPOSAL ACT - 2 CFR CH II (1-1-15 EDITION).** Pursuant to Federal Rule (H) above, a non-Federal entity that is a state agency or agency of a political subdivision of a state and its contractors must comply with section 6002 of the Solid Waste Disposal Act, as amended by the Resource Conservation and Recovery Act. The requirements of Section 6002 include procuring only items designated in guidelines of the Environmental Protection Agency (EPA) at 40 CFR part 247 that contain the highest percentage of recovered materials practicable, consistent with maintaining a satisfactory level of competition, where the purchase price of the item exceeds \$10,000 or the value of the quantity acquired during the preceding fiscal year exceeded \$10,000; procuring solid waste management services in a manner that maximizes energy and resource recovery; and establishing an affirmative procurement program for procurement of recovered materials identified in the EPA guidelines. Pursuant to Federal Law, when federal funds are expended by LWISD, LWISD requires that the proposer certifies that during the term of an award by LWISD resulting for this procurement process the vendor will comply. The respondent certifies by signature below that it will comply.
- 20. PATENT RIGHTS, COPYRIGHT, & RIGHTS.** Rights to Inventions Made Under a Contract or Agreement. If the Federal award meets the definition of "funding agreement" under 37 CFR §401.2 (a) and the recipient or sub-recipient wishes to enter into a contract with a small business firm or nonprofit organization regarding the substitution of parties, assignment or performance of experimental, developmental, or research work under that "funding agreement," the recipient or sub-recipient must comply with the requirements of 37 CFR Part 401, "Rights to Inventions Made by Nonprofit Organizations and Small Business Firms Under Government Grants, Contracts and Cooperative Agreements," and any implementing regulations issued by the awarding agency. When federal funds are expended by LWISD, LWISD requires that the proposer disclose during the term of an award resulting from this procurement process, the vendor will comply.
- 21. SUBCONTRACTING WITH SMALL AND MINORITY AND WOMEN'S BUSINESS ENTERPRISES OR LABOR SURPLUS FIRMS.** The respondent certifies that if the respondent will be subcontracting any work awarded under this qualification, the respondent must agree to comply with Federal requirements stated in 2 CFR 200.321-Contracting with Small and Minority and Women's Business Enterprises, and Labor Surplus Firms.

WORKER'S COMPENSATION. The Proposer is aware of the provisions of section 3700 of the Labor Code, which require every employer to be insured against liability for worker's compensation or to undertake self-insurance in accordance with the provisions of that code and complies with the provisions.

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SIGNATURE OF AUTHORIZED REPRESENTATIVE. The respondent agrees to comply with all federal, state, and local laws, rules, regulations and ordinances, as applicable. It is further acknowledged that the respondent certifies compliance with all provisions, laws, acts, regulations, etc. as specifically noted above and shall immediately report to Lake Worth ISD any change in vendor compliance.

Vendor Name: _____

Telephone: _____

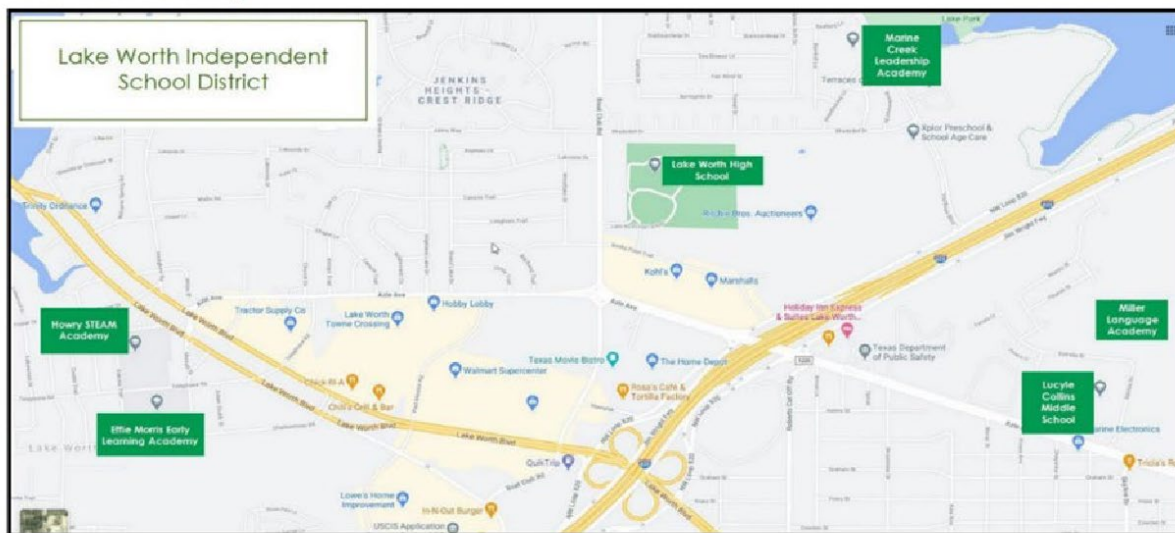
Email: _____

Printed Name of Authorized Representative:

Signature of Authorized Representative:

Date _____

District Map



NEW OR CHANGE - ELECTRONIC FUNDS TRANSFER (EFT) VENDOR PAYMENT AUTHORIZATION

This New or Change - Electronic Funds Transfer (EFT) Vendor Payment Authorization form must be submitted on company letterhead. Once your documents are received, we will begin processing the new EFT information. If changing, vendors may need to keep the old account open until confirmation of the transfer to the new account is received. Any payments issued to the old account may be delayed in reissuance until the funds have been returned to Lake Worth ISD. **Please complete this form and mail, fax, or email to:**

Attention: LWISD Business Services
Attn: Accounts Payable
6805 Telephone Road
Lake Worth, Texas 76135
Phone: 817-306-4200 ext. 1046
Fax: 817-237-5131
Email : accounts.payable@lwisd.org



Vendor Name: _____ Taxpayer Identification Number (TIN): _____
Phone Number: _____ Fax Number: _____
Email (for PO's): _____
Vendor Address: _____ City, State, Zip: _____
Company Website: _____ **Email (for EFT Note):** _____

Please fill in bank account information below for EFT/Direct Deposit payment:

☐ New EFT Set-Up ☐ Change EFT Set-up Account Type: ☐ Checking ☐ Savings

Bank Name: _____
Bank Routing Number (9 digits): _____ **(use routing number from a check)**
Account Number: _____
Bank Address: _____
City, State, Zip: _____
Bank Phone: _____

I hereby authorize Lake Worth Independent School District (LWISD) to initiate credit entries to the account indicated above to credit the same to such account. This authority is to remain in full force until LWISD has received written notification from me of its termination in such time and in such manner as to afford LWISD and the bank named to above a reasonable opportunity to act on it.

Please verify that the banking information is correct. It will be your responsibility to make the district aware of any bank changes, please call the Accounts Payable office at 817-306-4200 extension 1046 to request the EFT Change Form.

Account Owner Printed Name _____

Signature of Account Owner _____

Date _____

Business Office Use Only:

Verification Contact Phone Number: _____ Name & Position of person contacted: _____

Verification Method: _____

Verified by (signature): _____ Date: _____

ACH Entered (Date): _____ Entered by (signature): _____